

SENATE No. 268

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting real estate dual agency transactions.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 268

By Mr. Moore, a petition (accompanied by bill, Senate, No. 268) of Michael O. Moore for legislation to prohibit real estate dual agency transactions. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting real estate dual agency transactions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 87AAA3/4 of Chapter 112 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out the section and inserting in place thereof the
3 following section:-

4 “Section 87AAA3/4. No real estate broker or salesperson shall act as a dual agent or
5 engage in dual agency with any seller, landlord, buyer, or tenant in a real estate transaction.”